

MGTP 414 – Business Law

Fall 2025

Professor: Michael Parme

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Office Hours: I will be holding virtual office hours by appointment. Please request an office hours appointment at least two (2) days in advance via email and provide three dates/times you are available. I will consider holding a weekly virtual office hours session if I feel that would be more efficient and useful.

DESCRIPTION

This course is designed to provide you with a general understanding of core business law concepts and provide practical exercises that will help you evaluate how the law influences business decision-making. You will learn the basics of how the law shapes businesses as well as how it can be leveraged in a commercial context. Specifically, we will spend significant time looking at how the law regulates the behavior of actors within a business, significant issues with respect to contracts, how law can be utilized to create and mitigate business risk, and how legal disputes are resolved. The subject matter of the class incorporates content tested on the CPA Exam's "REG" section, but is not comprehensive of tested concepts. The course is intended to establish facility with core concepts and develop a practical understanding of them as well as the ability to apply these concepts in the real world.

OBJECTIVES

At the close of this course, you will be able to:

- Understand sources of law and public institutions that enforce civil law
- Understand principles of agency and application to businesses
- Identify and distinguish characteristics of different types of businesses
- Apply business formation principles to maximize business opportunity
- Understand how valid contracts are formed and enforced
- Read and understand basic contract provisions
- Identify and analyze significant provisions of contracts
- Apply substantive knowledge of liability and exposure for purposes of risk management
- Understand the benefits and costs associated with vehicles for resolving business disputes
- Apply principles of risk management and dispute resolution
- Understand different types of intellectual property
- Understand concepts of credit, secured transactions, and bankruptcy

MATERIALS

Required Texts: There are two required text books for this course.

- Henry Cheeseman, Business Law 11th Edition (2022), published by Pearson
- Nancy Kim, The Fundamentals of Contract Law and Clauses: A Practical Approach

Additional Resources: For most classes, additional reading material will be posted to Canvas. You are responsible for any resources made available through Canvas. Additional resources may include articles, secondary sources, media, etc. **It is your responsibility to make sure you check Canvas and review all posted material prior to the lecture.** I will periodically upload content that is relevant to current issues to facilitate discussion during the class. My expectation is that you will be familiar with the material and prepared for class. Lecture slides will be uploaded and made available on Canvas within one (1) day following the lecture.

ANNOUNCEMENTS AND CANVAS

It is very important for each student to sign on to Canvas and check it regularly for announcements and updates. It is the primary tool I will use to communicate with you (unless you email me at mparme@ucsd.edu). It is important for you to keep the lines of communication open and let me know if you are having any problems with accessing materials on Canvas (e.g. audio files, slides, etc).

SCHEDULE AND ASSIGNMENTS

Topics	Session/Week	Required Reading/Preparation
Overview of the Legal System; Sources of Legal Authority; Legislative and Judicial Process	Week 1 Oct. 1	Cheeseman p. 1-45 Assigned supplemental materials available through Canvas.
Agency Principles; Accountant Liability; Employment Liability	Week 2 Oct. 8 DUE 10/14/25: QUIZ #1 – (Covers Material from Week 1 and Week 2)	Cheeseman p. 499-536, 894-913, 564-588 Assigned supplemental materials available through Canvas.
Considerations in Starting a Business; Business Formation; Corporations; Basics of Securities Regulation	Week 3-4 Oct. 15; Oct. 22 GROUP PROJECT #1 DUE 10/27/25: QUIZ #2 – (Covers Material from Week 3 and Week 4)	Cheeseman p. 591-691 Assigned supplemental materials available through Canvas.
Contract Law; Formation, Consideration, and Enforcement	Week 5 Oct. 29	Cheeseman p. 185-284; Kim p. 7-107
Litigation, Trials, and the Resolution of	Week 6 Nov. 5	Cheeseman p. 45-67 Assigned supplemental materials available

Disputes	DUE 11/11/25: QUIZ #3 – (Covers Material from Week 5 and Week 6) GROUP PROJECT #2	through Canvas.
Remedies and Damages; Negligence; Risk Management	Week 7-8 Nov. 12; Nov. 19 DUE 11/25/25: QUIZ #4 – (Covers Material from Week 7 and Week 8)	Cheeseman p. 91-130 Kim p. 108-193 Assigned supplemental materials available through Canvas.
Intellectual Property (Trade Secrets, Patents, Copyright, Trademark); Data Privacy	Week 9 Nov. 26 DUE 12/19/25: QUIZ #5 – (Covers Material from Week 9)	Cheeseman p. 131-155 Assigned supplemental materials available through Canvas.
Emerging Issues in Business Law: Practical Applications of Course Concepts	Week 10 Dec. 3 – SCHEDULED DATE FOR FINAL EXAM	Assigned supplemental materials available through Canvas.
	Week 11 Dec. 10 – SCHEDULED DATE FOR FINAL EXAM	

Group Projects

There will be two major group projects and one smaller project. The group exercises will require both collaboration with classmates as well as oral presentation regarding specific aspects of the project.

Students will be evaluated based on my evaluation as to whether you provided a meaningful contribution to the group effort.

Group Project 1 will require students to collaborate for purposes of creating a business and addressing specific problems and challenges the group's business will face. The group will present solutions and a strategy for the business.

Group Project 2 will require students to apply principles of risk management and dispute resolution to navigate a unique business dispute. Each group will be provided specific objectives, develop a strategy for managing risk, and deploy that strategy against another group with conflicting interests.

A third smaller project on intellectual project can be done individually or as a group. The strength of your individual contributions to group project work will be considered. I also reserve the right to consider peer feedback in evaluating your group work. In other words, your grades for group work depend on both your collective and individual contributions.

Quizzes

Quizzes will be administered through Canvas. There will be five (5) quizzes throughout the course. Your lowest quiz score will be dropped and only the highest four (4) scores will count toward your final grade in the class.

You will have until 11:59 p.m. on the deadline to finish each quiz. The quizzes will be multiple choice. My goal with the quizzes is to reinforce core concepts. You may assume that the amount of time spent during lecture on a particular subject matter is indicative of its likelihood to appear on a quiz. Each student will be allowed to drop his/her/their lowest score.

Final Exam

The final exam will be a combination of multiple choice and essay questions. I will be testing your ability think critically and apply the material we have reviewed. You will receive guidance and instructions regarding the format of the exams.

Class Participation and Preparation

Class participation comprises approximately 10% of the student's grade. Participation is measured, in part, by the student's willingness to volunteer meaningful insights during class discussion or ask a question that assists the understanding of other students. My expectation is every student will be familiar with the assigned prepared for class. If there is a compelling reason why you are not prepared to discuss the assigned material for class, you should let me know in advance.

Participation credit can also be earned by presenting for the class a news article or current event that is relevant to the subject matter of the course. If you come across a recent news article, please email at least twenty-four (24) hours before the beginning of class. If appropriate for discussion in class, the student will briefly summarize the news article and receive participation credit.

Note that each class session is an opportunity to participate in discussion and/or present a current event. Given there are ten (10) class sessions, there are ample opportunities to ensure full credit toward your final grade for class participation.

GRADING

Assignments	Points [or percentage]
4 Quizzes (Your lowest score is dropped)	40% (10% per quiz)
Group Work/Presentation	25%
Class Participation	10%
Final	25%
Total	100%

COURSE POLICIES

Attendance Policy: I realize circumstances may arise that would cause a student to miss class. I ask that you let me know at least 24 hours in advance if you cannot attend a class. Failure to provide notification of an absence may negatively impact your class participation grade. Likewise, frequent absences, even upon notification would also have an adverse impact.

ACADEMIC INTEGRITY

Integrity of scholarship is essential for an academic community. As members of the Rady School, we pledge ourselves to uphold the highest ethical standards. The University expects that both faculty and students will honor this principle and in so doing protect the validity of University intellectual work. For students, this means that all academic work will be done by the individual to whom it is assigned, without unauthorized aid of any kind.

The complete UCSD Policy on Integrity of Scholarship can be viewed at:
<http://senate.ucsd.edu/Operating-Procedures/Senate-Manual/Appendices/2>

STUDENTS WITH DISABILITIES

A student who has a disability or special need and requires an accommodation in order to have equal access to the classroom must register with the Office for Students with Disabilities (OSD). The OSD will determine what accommodations may be made and provide the necessary documentation to present to the faculty member.

The student must present the OSD letter of certification and OSD accommodation recommendation to the appropriate faculty member in order to initiate the request for accommodation in classes, examinations, or other academic program activities. **No accommodations can be implemented retroactively.**

Please visit the <http://disabilities.ucsd.edu/about/index.html> for further information or contact the Office for Students with Disabilities at (858) 534-4382 or osd@ucsd.edu.